

Court No. - 29

Case :- WRIT - C No. - 45154 of 2009

Petitioner :- Shri Prem Singh

Respondent :- State Of U.P. & Others

Petitioner Counsel :- B. C. Rai

Respondent Counsel :- C. S. C., Rajesh Tripathi

Hon'ble Satya Poot Mehrotra, J.

Hon'ble Pankaj Mithal, J.

On prayer made by Shri Shobhit Dubey, learned counsel for the respondents no.1 and 2 the case is directed to be put up as fresh on 3rd September, 2009 so as to enable him to obtain instructions.

Order Date :- 27.8.2009

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Petitioner :- Shri Prem Singh

Respondent :- State Of U.P. & Others

Petitioner Counsel :- B. C. Rai

Respondent Counsel :- C. S. C., Rajesh Tripathi

Hon'ble Sunil Ambwani, J.

Hon'ble Ran Vijai Singh, J.

Heard learned counsel for the petitioner. Shri Shobhit Dubey appears for respondent Nos.1 and 2.

In a checking made by the Electricity Department it was found that the petitioner is unauthorisedly drawing electricity for running a 5 Horse Power motor for floor mill. A first information report was lodged on 5.7.2007. On 10.7.2007 the provisional assessment bill was prepared and was sent to the petitioner. The petitioner did not file any reply. The respondents have thereafter initiated recovery of the provisional assessment bill by issuing a recovery certificate. A citation dated 26.6.2009 to recover the amount has been issued giving rise to this writ petition.

Para 8.1 (b) of the U.P. Electricity Supply Code, 2005 provides for making assessment in theft cases. After making provisional assessment and serving it on the petitioner, the competent authority is required to make a final assessment, in which he has to record the findings that the assessee was served with provisional assessment and was given opportunity of personal hearing. In the present case it is admitted to the respondents that since no reply was filed to the provisional assessment, the provisional assessment itself was sent for recovery.

The procedure provided in U.P. Electricity Supply Code, 2005 for assessment of theft cases has not been followed.

The writ petition is consequently **allowed**. The recovery citation dated 29.6.2009 is quashed and the matter is sent back to the competent authority to make final assessment in accordance with the provisions of the U.P. Electricity Supply Code, 2005.

Order Date :- 9.9.2009

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